

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

COMPLAINT No: CC006000000012119

(Correction Order)

Mrs. Sadia Ishque Darvesh & Ms. Abeer Syed Complainants

Versus

M/s. Nirmal Lifestyle Limited

MahaRERA Registration No. P51800003188 --- Respondent

Coram: Hon'ble Dr. Vijay Satbir Singh, Member 1

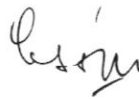
Adv. Jennifer Michael appeared for the complainants.

Mr. Rohit Chavan appeared for the respondent.

Order

(16th August, 2018)

1. The complainants have filed this complaint seeking directions from this Authority to the respondent to refund the entire amount paid by them with interest and compensation for the delayed possession in respect of booking of a flat bearing No. 607 in the building known as "Turquoise", bearing MahaRERA registration No. P51800003188 at Mulund (West), Mumbai.
2. Both the parties have settled the matter amicably and filed consent terms on record of MahaRERA. Accordingly, final order was passed by this Authority on 14th May, 2018 and the complaint was disposed of.



3. Now the complainants have filed an application for review/correction and requested to delete the word "withdrawn" wherever mentioned in the said order and also incorporate the sentence "the complaint stands disposed of in view of the consent terms filed by both the parties".
4. The complainants have argued that they are seeking review and corrections in the said order under the provision of section 39 of the RERA Act, 2016. Since it is a clerical error and justified request by the complainant, their application is entertained for hearing again. The respondent has also given their consent to delete the word "withdrawn" from the order dated 14th May, 2018 passed by MahaRERA.
5. Accordingly, this Authority has examined the arguments of both the parties as well as the consent terms filed on record of MahaRERA. It reveals that in the consent terms filed on record of MahaRERA, both the parties have agreed to dispose of the complaint in view of their settlement arrived at. It The word "withdrawn" got mentioned inadvertently in para 2(d) and 4 of the said order.
6. In the light of the above, this Authority hereby directs that the word "withdrawn" be deleted in para 2(d) and 4 of the order dated 14th May, 2018.
7. With these directions, the application stands disposed of finally.


(Dr. Vijay Saffbir Singh)
Member-1/MahaRERA